

26NNCV04912 26NNCV04912

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-28

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Case Number: 26NNCV04912 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Deem Requests For Admission Admitted; Request for Sanctions

Hearing Date: 08/28/26

CASE NO.: 26NNCV04912

CASE NAME: Tyisha Hampton v. Anthony Earl Sibert Jr., et al.

Moving Party: Plaintiff Tyisha Hampton

Responding Party: Defendant Anthony Earl Sibert Jr. individually and as
Administrator of the Estate of Harold E. Sibert

Notice: Sufficient

Ruling: DENY.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is an unlawful detainer action.

Plaintiff Tyisha Hampton (Plaintiff) alleges that on June 5, 2026, defendants Anthony Earl Sibert Jr., individually and as Administrator of the Estate of Harold E. Sibert, and Robert Soriano (collectively, Defendants) forcibly took possession of the premises at 1507 N. Grand Oaks Avenue, Pasadena, California 91104 (the Premises) while she was temporarily absent. Plaintiff alleges that prior to this she was in actual and peaceable possession of the Premises. On June 24, 2026, Plaintiff filed a Complaint against Defendants and DOES 1-25 alleging Forcible Entry and Detainer.

On June 14, 2026, Defendants filed an answer. On August 17, 2026, Defendants filed a First Amended Answer.

On July 17, 2026, Plaintiff filed the instant motions to deem requests for admission (RFAs) admitted against Anthony Earl Sibert Jr. (Res ID: 6071) and Robert Soriano (Res ID: 5796). On August 24, 2026, Defendants filed an opposition. On August 25, 2026, Plaintiff filed a reply.

On August 26, 2026, Defendants filed supplemental oppositions and Plaintiff filed a supplemental reply.

LEGAL

STANDARD

In an unlawful detainer action, a party must respond to requests for admissions at least 5 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (b).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of

any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

DISCUSSION

Plaintiff contends that Defendants failed to timely respond to the RFAs on or by the statutory deadline. (Mot., p. 3.)

Deem Request for Admission Admitted

Plaintiff served Defendants with the RFAs by overnight mail service on July 8, 2025. (Hampton Decl., ¶ 2.) Since this is an unlawful detainer action, Plaintiff argues that responses were required on July 15, 2026. (Hampton Decl., ¶ 3; Mot., p. 3.) As of the filing of the instant motions, Plaintiff maintains that Defendants have not served verified responses. (Hampton Decl., ¶ 4.)

In opposition, Defendants argue they have provided Plaintiff with verified responses, so the court shall not make an order deeming RFAs admitted. (Soriano Opp. (Opp. 1), pp. 1-2; Sibert Jr. Opp. (Opp. 2), pp. 1-2.) Proof of service reflect service dates of August 21, 2026. (Opp 1, Exh. A; Opp. 2, Exh. A.)

In reply, Plaintiff argues that the answers provided are insufficient and factually inconsistent but acknowledges receipt. (Reply, pp. 1-6; Hampton Decl., ¶¶ 2-3.)

On August 25, 2026, Defendants served supplemental RFAs to Plaintiff. (Soriano Supp. Opp., pp. 1-2; Sibert Jr. Supp. Opp., pp. 1-2.) Plaintiff filed a supplemental reply acknowledging receipt. (Hampton Supp. Decl., ¶¶ 2-3.) Plaintiff requests that if the Court finds compliance, sanctions still be imposed for necessitating the motion. (Supp. Reply, pp. 5-6.)

Here, Defendants have provided verified responses to Plaintiff’s RFAs and Plaintiff has acknowledged receipt.

Accordingly, the motions to deem RFAs admitted are DENIED as moot.

Sanctions

Sanctions are mandatory against the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to deem RFA as admitted. (See Code Civ. Proc., § 2033.280(c).) The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Although

Defendants have provided verified responses, Defendants’ failure to comply with discovery requests in a timely manner necessitated the motions, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff’s Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff

requests sanctions in the amount of \$200 reflecting \$100 incurred in preparing each motion (Hampton Decl., ¶ 6.) These expenses were incurred in preparing, drafting, and filing the motions. (Ibid.) The court finds these fees reasonable.

Accordingly, the Court GRANTS Plaintiff’s request for imposition of sanctions against Defendants, jointly, in the amount of \$200.

CONCLUSION

AND ORDER

Plaintiff Tyisha

Hampton's motions to deem RFAs admitted are DENIED as moot.

Plaintiff's

request for sanctions is GRANTED in the amount of \$200, to be paid by Defendants to Plaintiff 30 days from this ruling.

MOVING PARTY shall submit a proposed order consistent with this ruling within 15 days from the date of this ruling and provide notice.

Demurrer to Answer; Motion to Strike

Hearing Date: 8/28/26

CASE NO.: 26NNCV04912

CASE NAME: Tyisha Hampton v. Anthony Earl Sibert Jr., et al.

Moving Party: Plaintiff Tyisha Hampton

Responding Party: Unopposed

Ruling: DENIED
as MOOT.

BACKGROUND

This is an unlawful detainer action.

Plaintiff Tyisha Hampton (Plaintiff) alleges that on June 5, 2026, defendants Anthony Earl Sibert Jr., individually and as Administrator of the Estate of Harold E. Sibert, and Robert Soriano (collectively, Defendants) forcibly took possession of the premises at 1507 N. Grand Oaks Avenue, Pasadena, California 91104 (the Premises) while she was temporarily absent. Plaintiff alleges that prior to this she was in actual and peaceable possession of the Premises. On

June 24, 2026, Plaintiff filed a Complaint against Defendants and DOES 1-25 alleging Forcible Entry and Detainer.

On July 16, 2026, Plaintiff filed the instant demurrer to Defendants' answer. On July 17, 2026, Plaintiff filed an accompanying motion to strike portions of Defendants' answer.

On August 17, 2026, Defendants filed a First Amended Answer (AA).

LEGAL STANDARD

"A party against whom an answer has been filed may object, by demurrer...to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense; (b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; or (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc., § 430.20.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of

judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least

five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party

shall file and serve a declaration detailing their meet and confer efforts.

(Code Civ. Proc. § 430.41(a)(3).)

Plaintiff makes no reference to meet and confer efforts. The parties are admonished to comply with meet and confer requirements in the future.

Demurrer and

Motion to Strike

Plaintiff demurs

to the first, second, and third affirmative defenses found in Defendants’ initial

answer. (Dem., p. 2.) Plaintiff also
moves to strike several portions of Defendants' initial answer as false or
improper matter. (Mot., p. 2.)

Here, Defendants have filed a First
Amended Answer. "A party may amend its pleading once without leave of the court."
(Code Civ. Proc., § 472(a).) Thus, Plaintiff's demurrer and motion to strike
portions of the initial answer are deemed moot.

Accordingly, Defendant's demurrer and
motion to strike are DENIED as MOOT.

CONCLUSION
AND ORDER

Plaintiff's
demurrer as to Defendants' initial answer and motion to strike portions of the
initial answer are DENIED as MOOT.

MOVING PARTY shall provide notice.